

CANDIDATE PREFERENCE IN EMPLOYMENT

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- ORS 408.225 to 408.237, 240.306, 184.340, 284.771 to 284.801

APPROVED SIGNATURE:



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Statement

Oregon state government applies preference to candidates in recruitment processes as outlined in law.

Applicability

All employees, including temporary employees, according to provisions of state law.

Forms

- [Candidate Preference Toolkit](#)

Definitions

Refer to State HR Policy 10.000.01, Definitions, ORS 408.225 to 408.237 and ORS 284.771 to 284.801.

Policy

1. An appointing authority or designee administers this policy as the agency's policy.
2. Complying with candidate preference is mandatory. An agency must apply the appropriate candidate preference as outlined below.
3. Veterans' and Oregon National Guard Servicemember Preference.
 - a. Candidate preference is applied for veterans, disabled veterans, and current or former servicemembers of the Oregon National Guard whenever a competitive selection process is conducted including new hire, promotion, job rotation, developmental assignment and temporary hires. Candidate preference is applied at every stage in the selection process.
 - b. Qualifying for candidate preference
 - i. An agency awards candidate preference points when an applicant:
 1. Submits all required application materials and follows application instructions; and
 2. Meets all minimum qualifications and special qualifications of the position; and
 3. Meets the requirements to qualify as a veteran or disabled veteran, or a current or former servicemember of the Oregon National Guard, as defined by statute and submits military documents as verification:
 - a. **Veterans (qualifying for a 5-percentage preference)**
 - i. A copy of the Certificate of Release or Discharge from Active Duty (DD214 or 215) indicating service of at least 178 consecutive days or at least 1 day in a combat zone, and honorable discharge or a combat/campaign ribbon or expeditionary medal, or a letter from the U.S. Department of Veterans Affairs indicating the applicant receives a non-service-connected pension; or
 - ii. A certification indicating the applicant is expected to be discharged or released from active duty under honorable conditions not later

than 120 days after the submission of the certification.

b. Disabled Veterans (qualifying for a 10-percentage preference)

- i. A copy of form DD214 indicating separated from active duty under honorable conditions and a copy of a letter from the U.S. Department of Veterans Affairs indicating a disability rating unless the information is included on the DD214 or 215; or
- ii. A copy of a letter from the U.S. Department of Veterans Affairs indicating the person is receiving service-connected compensation; or
- iii. A certification indicating the applicant is expected to be medically separated from active duty under honorable conditions not later than 120 days after the submission of the certification.

c. Oregon National Guard Servicemembers (qualifying for a 5-percentage preference)

- i. A copy of the Retirement Accounting Statement (federal DA Form 5016); or
- ii. A copy of a Certificate of Release or Discharge from Active Duty (a federal DD form 214 or 214-1); or
- iii. A copy of a National Guard Report of Separation and Record of Service (a federal NGB Form 22); or
- iv. A summary of benefits letter from the United States Department of Veterans Affairs, or any other official document, provided that the document demonstrates you are a state servicemember or former state servicemember; or

- v. A certification indicating the applicant is expected to be discharged or released from service from the Oregon National Guard under honorable conditions not later than 120 days after the submission of the certification.
 - ii. For candidate preference to apply, the agency must receive the military documents normally at time of application but no later than at the time of interview. Military documents should be submitted through the Chief Human Resources Office information system, but may be submitted to the recruiter as needed.
 - iii. Preference is applied whether a scored numerical rating method or an unscored method, such as a pile system, is used.
 - iv. Once an agency awards candidate preference and records it in the state's human resources information system, the military documents do not need to be submitted again.
 - c. Screening veteran candidates
 - i. The hiring agency considers all of the following when determining the skills and attributes of the veteran applicant:
 - 1. Education
 - 2. Work experience
 - 3. Relevant life experience, i.e., experience where skills and attributes are obtained through unpaid activities such as volunteering or participating in an association or committee.
 - 4. Transferable skills, i.e., skills obtained through military education or experience that substantially relate, directly or indirectly, to the position.
 - ii. The hiring agency screens only for skills and attributes listed in the job posting.
 - iii. The veteran must provide sufficient evidence in the requested application materials for the hiring agency to determine if the veteran possesses the qualifications, skills and attributes for the position.
 - d. Interviewing veteran candidates (excludes Oregon National Guard servicemember)

- i. The hiring agency interviews all veteran candidates who:
 - 1. Meet the evaluation criteria for an interview to be granted (after application of veterans' preference) as determined by the hiring agency; or
 - 2. Meet all the required and requested skills and attributes listed in the job posting.
 - a. If the veteran candidate does not meet criteria in 1. the agency must review the veteran's application materials for 2..
 - ii. The hiring agency must document the reason if a veteran is not selected for an interview.
 - iii. Veterans from a pre-qualified list established by pre-employment tests who will be considered for hire from a ranked order do not have to be interviewed. Pre-qualified lists are typically established by law enforcement and fire protection agencies.
- e. Applying veterans' and servicemember preference throughout the selection process.
- i. Candidate preference is applied at each stage of the selection process, including, but not limited to, an interview.
 - ii. A stage in the process occurs when two or more applicants are evaluated and one or more applicants are rejected for the position.
 - iii. Candidate preference is applied on reference checks used as a tiebreaker or to distinguish between candidates. Candidate preference does not apply when reference checks are conducted only on a top candidate to ensure suitability.
 - iv. The hiring agency may use a scored or unscored evaluation method.
 - 1. Scored evaluation method
 - a. The applicable percentage (5 or 10) is calculated based on the total score possible and added to the applicant's total points.
 - 2. Unscored evaluation method

- a. Veterans or servicemembers will advance one level and disabled veterans will advance two levels.
- b. The hiring agency may choose the number of levels or rankings and define the levels and rankings such as:
 - i. Sorting levels or piles (for example, “highly desirable,” “substantially desirable,” “moderately desirable,” “possibly desirable,” “not desirable”)
 - ii. Ranking (comparing a candidate’s skills and attributes to another candidate)
- v. The hiring agency may choose the evaluation criteria such as:
 - 1. Strengths and weaknesses
 - 2. Competencies (skills and attributes)
 - 3. Responses to interview questions
- vi. The hiring agency must define and document the evaluation method and criteria.
- f. Selection
 - i. An agency appoints a veteran or servicemember applicant if at the final stage of the selection process the veteran or servicemember is ranked equal to or higher than a non-veteran/non-servicemember candidate.
 - ii. A disabled veteran will be appointed over a veteran or servicemember when deemed equal at the final stage of the selection process.
 - iii. A tie between a veteran and a servicemember may result in further examination of the two candidates to determine the finalist.
- g. Veteran and Servicemember Rights
 - i. A veteran or servicemember applicant who is not appointed to a position may make a written request for an explanation from the hiring agency.
 - ii. The hiring agency must provide a written response with the reasons for not appointing the veteran or servicemember.

4. Malheur County Residence Preference

- a. Malheur County residence preference applies whenever a competitive selection process is conducted for a vacant position or for promotion.
- b. Malheur County residence preference applies to positions where the majority of work will be performed within 20 miles of the state of Oregon border and the state of Idaho border, including, but not limited to, Ontario, Vale and Nyssa; an area in Oregon that is across the Oregon border from Weiser, Idaho; an area southwest of Vale for a distance of 10 miles; and Willow Creek and Brogan. This area is otherwise known as the Eastern Oregon Border Economic Development Region.
- c. An agency awards Malheur County residence preference when an applicant:
 - i. Submits all required application materials and follows application instructions; and
 - ii. Meets all minimum qualifications and special qualifications of the position; and
 - iii. Primarily resides in Malheur County.
- d. Candidates may decline preference at the time of application.
- e. Applying Malheur County residence preference throughout the selection process.
 - i. Malheur County residence preference is applied at each stage of the selection process, including, but not limited to, an interview.
 - ii. A stage in the process occurs when two or more applicants are evaluated and one or more applicants are rejected for the position.
 - iii. Malheur County residence preference is applied on reference checks used as a tiebreaker or to distinguish between candidates. Preference does not apply when reference checks are conducted only on a top candidate to ensure suitability.
 - iv. The hiring agency may use a scored or unscored evaluation method.
 - 1. At each stage of the application screening and recruitment process that results in a score, 5-percentage preference points are calculated based on the total score possible and added to the applicant's total points.

2. At each stage of the application screening and recruitment processes that does not result in a score, the candidate is moved up one rating at each step in the recruitment.
- v. Malheur County residence preference is applied after any veterans' preference points are awarded.
- vi. A qualified resident shall be appointed if the results of the resident applicant's application examination, when combined with the resident applicant's preference percentage points, are equal to or higher than the results of an application examination for an applicant who is not a resident applicant.
- vii. A resident applicant who received preference and accepted the position must maintain residency in Malheur County for at least five consecutive years following the date on which the employment begins.
- viii. Failure to maintain residency in Malheur County for this period shall be considered a voluntary termination of employment from the position.